

The M.P. Motor Transport Workers Rules, 1963

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State of Madhya Pradesh - Act

The M.P. Motor Transport Workers Rules, 1963

MADHYA PRADESH

India

The M.P. Motor Transport Workers Rules, 1963

RULE THE-M-P-MOTOR-TRANSPORT-WORKERS-RULES-1963 of 1963

Published on 26 June 1963

Commenced on 26 June 1963

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The M.P. Motor Transport Workers Rules, 1963

Published vide Notification No. 3274-322-16, dated 26-6-1963, M.P. Rajpatra, dated 28-6-1963, Part 4 (Ga) at page 543
In exercise of the powers conferred by Sections 9, 10, 19 and 40 of the Motor Transport Workers Act, 1961 (No. 27 of 1961), the State Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of Section 40 of the said Act, namely :-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Madhya Pradesh Motor Transport Workers Rules, 1963.

(2)

These rules except Rules 17 to 23 and Rule 25 shall come into force on and from the date of publication of these rules and Rules 17 to 23 and Rule 25 shall come into force on such date or dates as the Government may, by notification in the Official Gazette, specify in this behalf.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Motor Transport Workers Act, 1961 (No. 27 of 1961);

(b)

"Form" means a Form appended to these rules;

(c)

"Inspector" means an officer appointed under Section 4 of the Act and includes a Chief Inspector;

(d)

"Schedule" means a Schedule annexed to these rules;

(e)

"Section" means a section of the Act;

(f)

"Undertaking" means a motor transport undertaking.

(2)

All other words and expressions used but not defined in these rules and defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Interruptions during running time.

- Any interruption of less than fifteen minutes shall be counted towards running time.

Chapter II

Registration Of Motor Transport Undertaking

4.

Application for registration.

- Every employer of an undertaking shall, within not less than thirty days before the date on which he proposes to operate the undertaking, submit to the Chief Inspector or an Inspector duly authorised by him in this behalf an application in Form I, for the registration of the undertaking and grant of a certificate of registration :

Provided that in the case of an undertaking existing immediately before the commencement of these rules, such application shall be made within sixty days from such commencement :

Provided further that where an undertaking has units operating in more than one State, the employer of the undertaking shall apply for registration to the Chief Inspector or the Inspector, as the case may be, of the State in which its Head quarters Office is located.

5.

Grant of certificate of registration.

- A certificate of registration for an undertaking shall be granted by the Chief Inspector or an Inspector duly authorised by him in this behalf in Form II on payment of fees as specified below :-

[Schedule]

[Substituted by Notification No. F. 2-1-91-XVI-A (3), dated 4-2-1993.]

Maximum number of Motor Transport Workers to be employed during the year

Fees Rs.

(1)

(2)

5

40

25
100
50
200
100
400
250
1000
500
2000
750
3000
1000
4000
1500
6000]
6.

Validity of the certificate of registration.

- Every certificate of registration granted under Rule 5 or renewed under Rule 8 shall remain in force up to 31st December of the year for which the certificate is granted or renewed.

7.

Amendment of certificate of registration.

(1)

The certificate of registration granted under Rule 5 may be amended by the Chief Inspector or an Inspector duly authorised by him in this behalf.

(2)

An employer who desires to have his certificate of registration amended shall submit to the Chief Inspector or an Inspector duly authorised by him in this behalf an application stating the nature of amendment and reasons therefor.

(3)

The fee for the amendment of the certificate of registration shall be five rupees plus the amount, if any, by which the fee that would have been payable if the licence had been originally issued in the amended form exceeds the fee originally paid for the certificate of registration.

8.

Renewal of certificate of registration.

(1)

No undertaking shall operate unless its registration certificate is renewed by the Chief Inspector or an Inspector duly authorised by him in this behalf before its validity expires.

(2)

Every application for the renewal of the certificate of registration shall be in Form I in duplicate, and shall be made not less than sixty days before the date on which the certificate of registration expires and if the application is so made, the undertaking shall be deemed to be duly registered until such date as certificate of registration is renewed :

Provided that where an undertaking is registered on or after the 1st day of November in any year, application for renewal of the certificate of registration shall be made on or before the 1st day of January next following.

(3)

The fee chargeable for the renewal of the certificate of registration shall be the same as for the grant thereof :

Provided that if the application for renewal is not received within the time specified in sub-rule (2), the certificate of registration shall be renewed on payment of fee of 25 per cent in excess of the fee ordinarily payable for the certificate of registration.

9.

Transfer of certificate of registration.

(1)

An employer holding a certificate of registration may, at any time, before the expiration of its validity apply for permission to transfer the certificate to another person.

(2)

Such application shall be made to the Chief Inspector or an Inspector duly authorised by him in this behalf who shall, if he approves of the transfer, enter upon the certificate of registration under his signature, an endorsement to the effect that the certificate of registration has been transferred to the person named.

10.

Procedure on death or disability of employer.

- If an employer holding a certificate of registration dies or becomes insolvent, the person carrying on the business of the undertaking shall not be liable under the Act during such time as may reasonably be required to allow him to make an application for the amendment of the certificate of registration under Rule 7 in his name.

11.

Issue of duplicate certificate of registration.

- Where a certificate of registration granted or renewed under Rule 5 or Rule 8, as the case may be, is lost, defaced or accidentally destroyed, a duplicate may be granted on payment of a fee of five rupees.

12.

Payment of fees.

(1)

All fees to be paid under these rules shall be paid into the local treasury under the head of account "XXXII Miscellaneous, Social and Developmental Organisations A-Labour and Employment E-Fees realized under Motor Transport Workers Act" and receipt obtained which shall be submitted alongwith the application.

(2)

If an application for the grant, renewal, amendment or issue of a duplicate of a certificate of registration is rejected, the fees paid therefor shall be refunded to the applicant.

13.

Marking of the registration number on the vehicles.

- The registration number of the undertaking shall be marked in such manner as may be specified by the State Government on the left hand side of every vehicle in lettering 76 Mm high and 13 Mm thick.

Chapter III

Inspecting Staff

14.

Qualifications of Inspector.

- No person shall be appointed as Inspector including Chief Inspector for the purposes of the Act, unless he-

(a)

is a graduate, or

(b)

holds or has held the office of an Inspector under the-

(i)

Payment of Wages Act, 1936, or

(ii)

Minimum Wages Act, 1948, or

(iii)

Factories Act, 1948, or

(iv)

The Madhya Pradesh Shops and Establishments Act, 1958, or

(v)

holds or has held the office of Labour and Welfare Officer.

15.

Powers of Inspectors.

- An Inspector shall for carrying out the purposes of the Act, have power to do all or any of the following acts :-

(i)

to photograph any motor transport worker, to inspect or sketch, as the case may be, any motor transport vehicle, building room, appliance, apparatus, register or documents, which is under use or rules or occupation of any undertaking, or anything provided for the purpose of securing health and welfare of motor transport workers;

(ii)

to prosecute, conduct or defend before any Court any complaint or other proceeding arising under the Act or of these rules or in discharge of his duties as an Inspector;

(iii)

to require any employer to supply or send any return or information relating to the provisions of the Act or of these rules; and

(iv)

to have a person residing in a State other than one in which an offence under the Act or these rules has been committed examined through his opposite number in that State and to obtain a record of such examination.

16.

Duties of Certifying Surgeons.

(1)

For the purpose of examination and certification of adolescents who wish to obtain certificates of fitness, the Certifying Surgeon shall arrange a suitable time and place for the attendance of such persons and shall give previous notice in writing of such arrangements to the employers of undertaking concerned within the local limits of his jurisdiction or of undertakings or class of undertakings assigned to him.

(2)

The Certifying Surgeon shall issue his certificates in Form III. The foil and counterfoil shall be filled in and the left thumb mark of the person in whose name the certificate is granted shall be taken on them. On being satisfied as to the correctness of the entries made therein and of the fitness of the person examined, he shall sign the foil and initial the counterfoil and shall deliver the foil to the person in whose name the certificate is granted. The foil so delivered shall be the certificate of fitness granted under Section 23. All counterfoils shall be kept for a period of at least two years after the issue of the certificates.

(3)

The Certifying Surgeon shall upon request by the Chief Inspector, carry out such examination and furnish him with such report as he may indicate in respect of any undertaking or class of transport undertakings where :-

(a)

cases of illness have occurred which it is reasonable to believe are due to the nature of work or other conditions of work prevailing therein; or

(b)

adolescents are or are about to be, employed in any work which is likely to cause injury to their health.

(4)

If the Certifying Surgeon finds as a result of his examination that any person employed in any work in any undertaking is no longer fit to work for medical reasons, he shall inform the employer in writing accordingly. On receipt of this information it shall be obligatory on the employer to suspend such a person from working in that work for the period recommended by the Certifying Surgeon and no person after such suspension shall be employed in that work unless he is certified fit for the work by the Certifying Surgeon.

(5)

The employer shall afford to the Certifying Surgeon facilities to inspect any work in which any person is employed or is likely to be employed.

(6)

The employer shall provide for the purpose of any medical examination which the Certifying Surgeon wishes to conduct at a place of the undertaking to be fixed in consultation with the representatives of the workers (for his exclusive use on the occasion of the examination) a room which shall be properly cleaned, and adequately ventilated and lighted and furnished with a screen, a table (with writing material) and chairs.

Chapter IV

Welfare and Health

17.

Canteens.

(1)

The employer of every undertaking shall provide, for the use of the motor transport workers at every place wherein one hundred motor transport workers or more ordinarily call on duty during every day, an adequate canteen in or near the place wherein the undertaking is situated according to the standards prescribed in this rule.

(2)

The employer shall submit for the approval of the Chief Inspector plans and site plan in duplicate of the building to be constructed or adapted for use as a canteen.

(3)

The canteen building shall be situated not less than 15 metres from any latrine, urinal or any other source of dust, smoke, or obnoxious fumes :

Provided that the Chief Inspector may in any particular case relax the provision of this sub-rule to such extent as may be reasonable in the circumstances and may require measures to be adopted to secure the essential purpose of this sub-rule.

(4)

The canteen building shall be constructed in accordance with the plans approved by the Chief Inspector and shall accommodate at least a dining hall, kitchen, store room, pantry and washing places separately for workers and for utensils.

(5)

In a canteen, the floor and inside walls upto a height of 1.2 metres from the floor shall be made of smooth and impervious material; the remaining portion of the inside walls shall be made smooth by cement plaster or in any other manner approved by the Chief Inspector.

(6)

The doors and windows of a canteen building shall be of fly-proof construction and shall allow adequate ventilation.

(7)

The canteen shall be sufficiently lighted at all times when any person has access to it.

(8)

(a)

In every canteen-

(i)

all inside walls of rooms and all ceilings, passages and staircases shall be lime-washed, colour washed or painted as the case may be, Lime washing or colour washing shall be carried out once in every year and painting shall be carried out once in every three years;

(ii)

all wood work shall be varnished or painted once in every three years; and

(iii)

all internal structural iron or steel work shall be varnished or painted once in every three years :

Provided that inside walls of the kitchen shall be lime-washed once in every four months.

(b)

Records of dates on which lime washing, colour washing, varnishing or painting, as the case may be, is carried out shall be maintained in a register in Form IV

(9)

The precincts of the canteen shall be maintained in a clean and sanitary condition. Waste water shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance. Suitable arrangement shall be made for the collection and disposal of garbage.

18.

Canteen Hall.

(1)

The canteen hall shall accommodate at least thirty percent of the motor transport workers likely to come at a time :

Provided that in any particular undertaking, or in any particular class of undertakings, the State Government may, by notification in this behalf, alter the percentage of workers to be accommodated.

(2)

The floor area of the canteen hall excluding the area occupied by service counter and any furniture, except tables and chairs, shall be not less than 93 sq. Deci-metres per diner to be accommodated under sub-rule (1).

(3)

Sufficient tables, chairs or benches shall be available for the number of diners to be accommodated under sub-rule (1).

19.

Equipment.

(1)

There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteen. Suitable clean clothes for the employees serving the canteen shall also be provided and maintained.

(2)

The furniture, utensils and other equipment shall be maintained in a clean and hygienic condition. A service counter, if provided, shall have a top of smooth and impervious material. Suitable facilities including an adequate supply of hot water shall be provided for the cleaning of utensils and other equipment.

20.

Prices to be charged.

(1)

Food, drink and other items served in the canteen shall be sold on a non-profit basis and the prices charged shall be subject to the approval of the Canteen Managing Committee constituted under Rule 22.

(2)

The charges per portion of food stuff, beverages and any other items served in the canteen shall be conspicuously displayed in the canteen.

21.

Accounts.

(1)

Proper accounts pertaining to the canteen shall be maintained. All books of accounts, registers or any other documents used in connection with the running of a canteen shall be produced on demand to an Inspector.

(2)

Tire accounts pertaining to the canteen shall be audited once in every 12 months by registered accountants and auditors. The balance sheet prepared by the said auditors shall be submitted to the Canteen Managing Committee not later than 2 months of the closing of the audited accounts :

Provided that the accounts pertaining to the canteen in a public sector undertaking having its own Accounts Department may be audited in that Department.

22.

Canteen Managing Committee.

(1)

The employer shall constitute a Canteen Managing Committee which shall be consulted from time to time as to :-

(a)

the quality and quantity of food stuffs to be served in the canteen;

(b)

the arrangement of the menus;

(c)

times of means in the canteen; and

(d)

any other matter as may be directed by the committee.

(2)

The Canteen Managing Committee shall consist of an equal number of persons nominated by the employer and the Approved Union of the motor transport industry in that local area. In case there be no such approved union, the workers' representative shall be elected by the motor transport workers. The number of elected workers shall be in the proportion of one for every 500 workers employed in the undertaking :

Provided that in no case shall there be more than 5 or less than 2 motor transport workers on the committee.

(3)

The members of Canteen Managing Committee shall hold office for a period of one year from the date on which it is constituted :

Provided that such members shall notwithstanding the expiration of their term continue to hold their office until the constitution of the next Canteen Managing Committee.

23.

Rest Rooms.

- The rest-rooms shall conform to the following standards and the employer of every undertaking shall submit for the approval of the Chief Inspector plans and site plan in duplicate of the building to be constructed or adapted-

(a)

The building shall be soundly constructed and all the walls and roof shall be of suitable heat-resisting materials and shall be water-proof. The floor and walls to a height of 1 metre shall be so laid or finished as to provide a smooth, hard and impervious surface;

(b)

the height of every room in the building shall be not less than 2.75 metres from the floor level to the lowest part of the roof and there shall be atleast 465 sq. Deci-metres of floor area for every motor transport worker required to halt at night;

(c)

a latrine and bath will be provided;

(d)

effective and suitable provision shall be made in every room for securing and maintaining adequate ventilation by the circulation of fresh air and there shall also be provided and maintained sufficient and suitable natural or artificial lighting;

(e)

every rest-room shall be adequately furnished with chairs and cots; and

(f)

every rest-room building and precincts thereof shall be kept in a clean and tidy condition :

Provided that where the Chief Inspector is satisfied that in respect of any particular place the provision of rest-rooms to the above standards is not reasonably practicable, he may, by order in writing, approve any suitable alternative accommodation, subject to such conditions as he may specify.

24.

Uniforms.

(1)

The drivers, conductors and line-checking staff employed in a undertaking shall be provided free, by the employer with uniforms and rain-coats as specified in Schedule I.

(2)

Where washing of uniforms provided under sub-rule (1) is not arranged by the employer, the staff concerned shall be entitled to a washing allowance at the rate of Rs. 2 per month.

25.

Medical Facilities.

(1)

At every operating centre and halting station (which, in the case of city service shall include only depots and other offices) wherein 250 motor transport workers or more ordinarily call on duty during every day, a dispensary shall be provided and maintained with such equipment and drugs as the State Government may direct.

(2)

The dispensary shall be in charge of a qualified medical practitioner assisted by such staff as the State Government may direct.

(3)

The dispensary shall have a floor area of at least 2323 sq. Decimetres and smooth hard and impervious walls and floor and shall be adequately ventilated and lighted by both natural and artificial means.

(4)

An adequate supply of wholesome drinking water shall be provided.

(5)

At every operating centre and halting station where less than 250 motor transport workers call on duty every day, first-aid boxes or cup-boards of the standard set out in Schedule II shall be provided. Every first-aid box or cup-board shall be clearly marked "First-Aid" and shall be kept stocked and in good order. The first-aid boxes or cup-boards shall be readily accessible during all working hours and shall be in charge of an employee of the undertaking trained in first-aid.

26.

Firs.

- Aid Facilities.-First-aid box containing the equipment mentioned in Schedule III shall be provided in every motor transport vehicle. Every first-aid box shall be clearly marked "First-Aid" and shall be kept stocked and in good order.

Chapter V

Hours and Limitations of Employment

27.

Hours of work.

(1)

The Chief Inspector or any Inspector authorised by him may, on written application from an employer, and subject to such conditions and for such period as he may think fit, permit motor transport workers to work for more than 8 hours in any day or 48 hours in any week but in no case more than 10 hours in a day and 54 hours in a week-

(i)

on any route of 100 kilometres or more; and

(ii)

on such festive or other occasions as may be notified by the State Government in the Official Gazette.

(2)

In any case referred to in the second proviso to Section 13, an employer shall not require or allow any motor transport worker to work for more than 16 hours in a day and 72 hours in a week with at least 8 consecutive hours of rest between the termination of duty and commencement of the next duty.

28.

Notice of hours of work.

(1)

The notice of hours of work shall be in Form V.

(2)

Except in cases of staff employed for surprise checking and approved by Chief Inspector as such the notice of hours of work shall be written in language understood by the majority of workers and shall be displayed at a conspicuous place where the motor transport workers ordinarily call for duty and shall be maintained in clean and legible condition :

Provided that if the Chief Inspector is of opinion that the duty schedule or any other record maintained as a part of the routine of the undertaking gives the particulars required under this rule, he may, by order in writing, direct that the maintenance of such record shall be sufficient compliance with the provisions of this rule.

(3)

No change in the notice of hours of work shall be allowed unless a three days' clear notice is given to the Inspector indicating the contemplated change in the notice of hours of work.

29.

Weekly Rest.

(1)

No motor transport worker shall be required or allowed to work on a day of rest fixed for him (hereinafter referred to as the said day), unless-

(a)

he has or will have a holiday for a whole day (hereinafter called the substituted day) on one of the three days immediately before or after the said day, and

(b)

the employer has before the said day or substituted day whichever is earlier-

(i)
delivered a notice at the offices of the Inspector of his intention to require the worker to work on the said day and the day which is to be substituted; and

(ii)
displayed a notice to that effect at the premises.

(2)
Notices given under sub-rule (1) may be cancelled by a notice delivered at the office of the Inspector and notice displayed at the premises of the undertaking not later than the day before the said day or the substituted day to be cancelled, whichever is earlier.

(3)
Where in accordance with the provisions of sub-rule (1) any motor transport worker works on the said day and has had a holiday on one of the three days immediately before it, that said day shall, for the purpose of calculating his weekly hours of work, be included in the immediately preceding week.

30.
Compensatory holidays.

(1)
Every employer shall display, on or before the end of the month in which holidays are lost, a notice in respect of workers allowing compensatory holidays during the same month or the immediately following two months and of the dates thereof, at the place at which the notice of hours of work prescribed under Section 18 of the Act is displayed. Any subsequent change in the notice in respect of any compensatory holiday shall be made not less than three days in advance of the date of that holiday.

(2)
Any compensatory holiday or holidays to which a worker is entitled shall be given to him before he is discharged or dismissed and shall not be reckoned as part of any period of notice required to be given before discharge or dismissal.

(3)
Every employer shall maintain a register of compensatory holidays in Form VI, which shall be preserved for a period of three years after the last entry in it and shall be produced before the Inspector on demand.

Chapter VI

Wages And Leave

31.
Overtime.
- When any motor transport worker works for more than 8 hours on any day or more than 48 hours in any week in any case referred to in the second proviso to Section 13 he shall be entitled to the rate of wages in respect of overtime work at one and a half times the rates of his ordinary wages.

Note. - Overtime work means any work in excess of 8 hours a day or 48 hours a week.

32.
Holidays.
- The State Government may notify in the Official Gazette the holidays which shall be granted to the motor transport workers.

33.
Leave with wages.

(1)
Every employer shall maintain a Register of Leave with wages, in Form VII :
Provided that if the Chief Inspector is of opinion that any muster-roll or register maintained as part of the routine of any undertaking, or return made by the employer, gives in respect of any or all of the workers, the particulars required for the enforcement of Chapter VII of the Act, he may, by order in writing, direct that such muster-roll or register or return shall to the corresponding extent, be maintained in place of and treated as the register required to be maintained under this rule in respect of that undertaking.

(2)
The register of leave with wages shall be preserved for a period of three years after the last entry in it and shall be produced before the Inspector on demand.

34.

Leave Book.

(1)

Every employer shall provide each worker with a book in Form VIII (hereinafter called the Leave Book). The Leave Book shall be the property of the worker and the employer or his agent shall not demand it except to make necessary entries and shall not keep it for more than a week at a time :

Provided that if any leave card or similar record giving full particulars of the leave as shown in the leave book is issued by the employer to the motor transport worker such card or record may be accepted by order in writing by the Chief Inspector.

35.

Register of Workers.

- Every employer shall maintain a register of workers in Form IX :

Provided that if the Chief Inspector is of opinion that any register of workers of similar record maintained as part of the routine of an undertaking gives the particulars required under this rule. He may, by order in writing, direct that such register of workers or record shall be maintained in place of and treated as, the register of workers required to be maintained under this rule.

36.

Muster-Roll.

- Every employer shall maintain a muster-roll of all workers employed in the undertaking in Form X :

Provided that if the Chief Inspector is of opinion that any muster-roll or register maintained as part of the routine of an undertaking gives the particulars required under this rule, he may, by order in writing, direct that such muster-roll register be maintained in place of and treated as the muster-roll required to be maintained under this rule.

37.

Overtime Muster Roll.

- Every employer shall maintain muster-roll in Form XI in which shall be correctly entered overtime hours of work and payments therefor. The muster-roll shall always be available for inspection :

Provided that if the Chief Inspector is of opinion that an overtime muster-roll register maintained as part of the routine of an undertaking gives the particulars required under this rule, he may, by order in writing direct that such overtime muster-roll register be maintained in place of and treated as the muster-roll required to be maintained under this rule.

38.

Individual Control Book.

(1)

No employer shall allow operation of any motor transport vehicle unless each motor transport worker travelling with the vehicle is provided with and maintains Individual Control Book in Form XII. The Book shall be bound with the forms in duplicate and each form shall be numbered consecutively :

Provided that if the Chief Inspector is of opinion that any individual control book or similar record maintained as part of routine of an undertaking gives the particulars required under this rule, he may, by order in writing, direct that such individual control book or record be maintained in place of and treated as the individual control book required under this rule.

(2)

Every motor transport worker travelling with the vehicle shall make entries daily in the Individual Control Book and forward or handover to his employer the original copy of the form not later than the first working day after completion of the week to which the form related.

(3)

Every employer shall maintain the original copies of the Individual Control Book mentioned in sub-rule (2) in separate files for each motor transport worker for a period of three years and shall produce it on demand by an Inspector.

(4)

Every motor transport worker travelling with the vehicle shall carry and retain with himself the Individual Control Book for at least 6 months after the last entry and produce for inspection on demand by an Inspector.

Chapter VII

Miscellaneous

39.

Returns.

- The employer of every undertaking shall furnish to Chief Inspector or other officer appointed by the State Government in this behalf not later than the first February' of the year immediately succeeding to that to which it relates the annual return in duplicate in Form XIII.

Form I

[See Rules 4 and 8]

Application for Registration and Grant or Renewal of Certificate of Registration

1.

Name of motor transport undertaking

...

2.

Full address to which communications relating to the motor transport undertaking should be sent

...

3.

Nature of motor transport service, e.g. City Service, long distance passenger service, long distance freight service

...

4.

Total number of routes

...

5.

Total route mileage

...

6.

Total number of motor transport vehicles on the last date of the preceding year

...

7.

Maximum number of motor transport workers employed on any day during the preceding year

...

8.

Full names and residential addresses of the -

(i) Proprietor and partners of the motor transport undertaking in case of a firm not registered under the Companies Act, 1956;

or

(ii) General Manager in case of a public sector undertaking

9.

Full name and residential address of the Directors in the case of a company registered under the Companies Act, 1956

...

10.

Amount of fee Rs. ?..... paid in.....

(Rupees ?.....

(Vide Challan No. ?..... enclosed).

Treasury on ..

Signature of the employer

Date.....

Note. - This form should be completed in ink in block letters or typed.

Form II

[See Rule 5]

Certificate of Registration to Work as Motor Transport Undertaking

Fee Rs.....

Registration No.

Serial No.....

Certificate of Registration is hereby granted to to operate motor transport services employing not more than.....persons on any one day during the year subject to provisions of the Motor Transport Workers Act, 1961, and the Rules made thereunder.

The Certificate of Registration shall remain in force till the 31st day of December, 19....

The.....19.....

Chief Inspector/Inspector

Date of Renewal

Date of Expiry

Signature of the ChiefInspector/Inspector

(1)

(2)

(3)

.....

.....

.....

.....

.....

.....

.....

.....

.....

Form III

[See Rule 16]

Certificate of Fitness

1.

Serial No. Date

Serial No. Date

2.

Name

I certify that I have personally examined

3.

Father?s name

(name).....

4.

Residence.....

son of.....

5.

Date of birth, if available, and/or certified age.....

residing at.....

6.

Physical fitness.....

Who is desirous of being employed

in a motortransport undertaking and that his age, as nearly

as can be ascertained from myexamination is ?.....

years, and that he is fitfor employment in motor

transportundertaking as an adolescent.

7.

Descriptive marks.....

8.

Reasons for -

(1) Refusal of certificate.....

(2) Certificate being revoked

His descriptive marks are.....

.....

.....

Thumb impression

Thumb impression

Initials of Certifying Surgeon

Certifying Surgeon

Note. - Exact details of cause of physical disability should be clearly stated.

Form IV

[See Rule 17]

Record of Lime - Washing Painting etc.

Name of room

Parts Lime-washed, painted, varnished, e.g.

walls, ceilings, wood work, etc.,

Treatment, whether lime-washed, painted,

varnished

Date on which lime-washing, painting, varnishing
was carried out (according to the English calendar)

Remarks

Day

Month

Year

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Signature of Employer

Form V

[See Rule 28]

Notice of Periods of Work for Motor Transport Workers for the Year 196....

Name of

Undertaking.....

Place.....

Periods of work

Total number of men employed

Total number of adolescents employed

Description of groups

Remarks

Groups

A

B

C

D

E

F

G

H

Groups

Nature of work

Day on which weekly holiday is allowed

Relays

1.2.3.

1.2.3.

1.2.3.

1.2.3.

1.2.3.

1.2.3.

1.2.3.

1.2.3.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

(13)

Hours of work on working days.

1. From.....To....

A.

2. From.....To....

B.

3. From.....To....

C.

4. From.....To....

D.

5. From.....To....

E.

6. From.....To....

F.

On partial working days

7. From.....To....

G.

8. From.....To....

H.

Date on which this notice is first exhibited.

Signature of Employer

Form VI

[See Rule 30]

Register of Compensatory Holidays

Serial No.

S.No. in the register of workers

Name

No. and date of exempting order

Weekly rest days lost due to the exempting order
in

Date of compensatory holidays given in

Lost rest days carried to the next year

Remarks

Year

Jan. to Mar.

Apr. to June

July to Sept.

Oct. to Dec.

Jan. to Mar.

Apr. to June

July to Sept.

Oct. to Dec.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

(15)

Form VII

[See Rule 33]

Register of Leave With Wages Adults/Adolescents

S.No.....

Name of the Undertaking.....

Name.....

Father's name.....

Address.....

Date of entry into service.....

Date of discharge.....

Date and amount of payment made in lieu of leave due.....

Calendar Year of Service

Wage period from to

Wages earned during the wage period

No. of days work performed

Leave to credit

Balance of leave from preceding year

Leave earned during the year mentioned in col.

(1)

(1)

(2)

(3)

(4)

(5)

(6)

Total of cols. (5) and (6)

Whether leave was refused

Leave enjoyed from to

Balance of leave to credit

Normal rate of wages

Cash equivalent of advantage accruing through
concessional rate of foodgrains and other articles

Rate of wages for the leave period [Total of
cols. (11) and (12)]

Remarks

(7)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

Note - Separate page will be allotted to each worker.

Form VIII

[See Rule 34]

Leave Book Adults/adolescents

S. No.....

Name of Undertaking.....

Address.....

Date of entry into service.....

Date and amount of payment made in lieu of leave due

Calendar year of service

Wage period from to

Wages earned during the wage period

No. of days of work performed

Leave to credit

Total of Cols. (5) and (6)

Balance of leave from preceding year

Leave earned during the year mentioned in col.

(1)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Whether leave was refused

Leave enjoyed from to

Balance of leave to credit

Normal rate of wage

Cash equivalent of advantage accruing through
concessional rate of foodgrains and other articles

Rate of wages for the leave period total of cols.

(11) and (12)

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

Signature of Employer or his Agent

Note - The leave book shall be made out for each worker on thick bound sheets.

Form IX

[See Rule 35]

Register of Workers

Part I ? Adults Part II - Adolescents

Serial No.

Name

Father?s Name

Address

Nature of work

Letter of group as in notice of period of work

No. and date of certificate of fitness of an
adolescent

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Form X

[See Rule 36]

Muster Roll

Name of the undertaking.....

For the month

of.....

.....

Place.....

Serial No.

Name

Father's Name

Nature of work

For the period ending

Remarks

1.2.3.4.5.6.7.8.9.10.11.12.13.14.15.16.17.18.19.20.21.22.23.24.

25.26.27.28.29.30.31.

(1)

(2)

(3)

(4)

(5)

(6)

Form XI

[See Rule 37]

Overtime Muster Roll

Part I ? Overtime under first proviso to Section 13 Part II - Overtime under second proviso to Section 13

Serial No.

S. No. in the Register of workers

Name

Nature of work

Dates on which overtime has been worked

Extent of overtime on each occasion

(1)

(2)

(3)

(4)

(5)

(6)

Total overtime worked

Normal hours

Normal rate of pay

Overtime rate of pay

Overtime earning

Date on which overtime payments made

(7)

(8)

(9)

(10)

(11)

(12)

Form XII

[See Rule 38]

Individual Control Book

Sheet No.....

Week from Sunday.....to Saturday.....19

Name of the Motor Transport Worker.....

Day

Date

On duty (D) or Rest (Rest)

Time and Place

Spread over

Period vehicle on road

Period of interruption of 10 mtr. or more
referred to in col. (f) of Section 2

Running (7-8)

Time spent in subsidiary work

Periods of more attendance at terminals of less
than 15 minutes

Hours of work 9-10-11

Interval of rest

Length of over time worked

Circumstances under which over time worked

Remarks

of taking up duty

ending duty

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

(15)

(16)

Sunday

Monday

Tuesday

Wednesday

Thursday

Friday

Saturday

Note - A new working week begins at midnight on Saturday. Particulars of hours of work and rest on Saturday should be included in the form for the previous week and those on Sunday should be included in the form for the following week.

Date and Signature of the Motor Transport Worker.

Form XIII

[See Rule 39]

Annual Return

Year ending 31st December 196

1.

Name of the Motor Transport undertaking

.....

2.

Postal Address

.....

3.

* Average number of workers employed daily

Adult

.....

Adolescents

.....

4.

Normal hours worked per day

Adult

.....

Adolescents

.....

5.

What rest intervals were given?

Adult

.....

Adolescents

.....

6.

The number of workers exempted from the provisions of
sections :

13

.....

19

.....

7.

Leave with wage-

.....

(i) :

Number of workers who are entitled to annual leave with wages
during the calendar year of which this return relates

Adults

.....

Adolescents

.....

(ii) year.

Number of workers who were granted leave during the

Adults

.....

Adolescents

.....

(iii)

Number of workers discharged or dismissed from service during
the year.

Adults

.....

Adolescents

.....

(iv)

Number of discharged workers paid wages in lieu of leave.

Adults

.....

Adolescents

.....
(v)

Total amount of wages paid in lieu of leave

.....
8.

Compensatory holiday-

(i)

Number of workers exempted from Section 19

Adults

.....
Adolescents

.....
(ii)

Number of workers who received holidays in the-

.....
(a)

same month

.....
(b)

following month

.....
(c)

third month

.....
Canteens-

(No. of canteens and situations)

10.

Medical Facilities-

(i)

Number of dispensaries and situations

.....
(ii)

Number of doctors

.....
(iii)

Number of nurses

.....
11.

Rest Rooms-

(i)

Number of rest rooms

.....
(ii)

Details of accommodation, furniture and other equipment
provided

.....
(iii)

Approximate average daily attendance of workers

.....
Date.....

.....

Signature of the Employer

* The average daily number should be calculated by dividing the aggregate number of attendances on working days by the number of working days during the year. In reckoning attendances, attendances by temporary as well as permanent employees should be counted. Attendances on separate shifts should be counted separately. Days on which the undertaking was not operating for whatever cause should be treated as working days.

I

[See Rule 24]

Category of Staff

Particulars of articles

Quantity

Period of supply

(1)

(2)

(3)

(4)

1.

(i) Drivers, Conductors, Traffic Inspectors and Ticket examiners.

(a) Cotton Shirt or Coat

2

(ii)

Cleaners, watchmen and other line checking staff

if required to go with the vehicle

Cotton pant Cotton cap or turban

21

Every summer

(b) Woollen Coat Woollen pant

11

Once in every three years

Woollen cap or cotton turban

1

(c) Semi closed chappals 2 pairs (Pathani-type)

Every year

Provided that in places where due to climatic conditions woollen clothes are not ordinarily worn, a cotton shirt, pant and cap or turban may be supplied every winter instead of woollen clothes as provided in sub-clause (v).

2.

(i) Drivers, conductors, Traffic Inspectors and Ticket examiners.

Rain Coat with Cap

1 .

Once in every five years

(ii)

Cleaners, watchmen and other line checking staff

if required to go out in rains for their normal work.

Note. - "Inspector" shall include "Ticket Inspectors", "Travelling Ticket Inspectors" and "Road Inspectors" and also "Controllers", "Assistant Traffic Inspectors" and "Checkers and Traffic Incharge" if required to go with the vehicle.

II

[See Rule 25]

(a)

For operating centres and Halting Stations wherein 10 and not exceeding 50 Motor Transport Workers ordinarily call on duty during every day-

Each first-aid-box or cupboard shall contain the following equipments :-

(i)

12 small sterilized dressings.

(ii)

6 medium size sterilized dressings.

(iii)

6 large size sterilized dressings.

(iv)

6 large size sterilized burn dressings.

(v)

15 grams packets sterilized cotton wool.

(vi)

55 Grams bottle containing a two per cent alcoholic solution of iodine.

(vii)

55 Grams bottle containing sal-volatile having the dose and mode of administration indicated on the label.

(viii)

1 roll of adhesive plaster.

(ix)

A snake bite lancet.

(x)

1 (30 Grams) bottle of potassium permanganate crystals.

(xi)

1 pair scissors.

(xii)

1 copy of the approved first-aid leaflet.

(b)

For operating centres and halting stations wherein more than 50 motor transport workers ordinarily call on duty during every day-

Each first-aid box or cupboard shall contain the following equipments :-

(i)

24 small sterilized dressings.

(ii)

12 medium size sterilized dressings.

(iii)

12 large size sterilized dressings.

(iv)

12 large size sterilized burn dressings.

(v)

15 grams packets sterilized cotton wool.

(vi)

1 snake bite lancet.

(vii)

1 pair scissors.

(viii)

30 Grams bottles of potassium permanganate crystals.

(ix)

113 Grams bottles containing a two per cent alcoholic solution of iodine.

(x)

113 Grams bottle of sal-volatile having the dose and mode of administration indicated on the label.

(xi)

1 copy of the approved first-aid leaflet.

(xii)

12 roller bandages 100 centimetres wide.

(xiii)

12 roller bandages 50 centimetres wide.

(xiv)

2 rolls of adhesive plaster.

(xv)

6 triangular bandages.

(xvi)

2 packets of safety pins.

(xvii)

A supply of suitable splints.

(xviii)

1 tourniquet.

III

[See Rule 26]

(i)

6 small sterilized dressings.

(ii)

3 medium size sterilized dressings.

(iii)

3 large size sterilized dressings.

(iv)

3 large size sterilized burn dressings.

(v)

30 Grams bottle containing a two per cent alcoholic solution of iodine.

(vi)

30 Grams bottle containing sal-volatile having the dose and mode of administration indicated on the label.

(vii)

A snake-bite lancet.

(viii)

1 (30 Grams) bottle of potassium permanganate crystals.

(ix)

1 pair scissors.

(x)

1 copy of approved first-aid leaflet.

Related AI tags, queries and research notes

Translation